

M/s Jain Cold Storage v. PVVNL (additional security, para 4.20)

High Court of Judicature at Allahabad · Division Bench · 30 August 2022 · Writ-C No. 26237 of 2010 · **Writ dismissed as infructuous due to efflux of time.**

HEADNOTE

Challenge to additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. Interim restraint on the demand, following a connected petition, without prejudice. Writ later dismissed as infructuous by efflux of time.

FACTUAL SUMMARY

M/s Jain Cold Storage filed a writ against PVVNL challenging additional security demanded under para 4.20 of the U.P. Electricity Supply Code, 2005. On 18 May 2010 a Division Bench connected the petition with WP 30582 of 2009 and similar matters, allowed three weeks for a counter, and, following the interim order already granted in the connected writ, restrained the respondents from demanding additional security until further orders, without prejudice. In August 2022 counsel stated the petition had become infructuous by efflux of time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

A writ challenging additional security under para 4.20 was connected with similar pending petitions and, following an existing interim order in WP 30582 of 2009, the respondents were restrained until further orders from demanding additional security, without prejudice. The petition was later dismissed as infructuous by efflux of time, without a decision on the validity of the demand. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF ADDITIONAL SECURITY DEMANDED UNDER PARA 4.20

Merits never decided; 2010 stay was without prejudice and the writ was dismissed as infructuous. ¶ 2